

26STCV28842 26STCV28842

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Case Number: 26STCV28842 Hearing Date: September 22, 2026 Dept: 732

Leslie Rubire Ibarra Lopez v. G I

Security, Inc., et al.

Tuesday,

September 22, 2026

CASE NUMBER: 26STCV28842

OPPOSED

Defendants Daniel Perez Jr. and Marcella Nada Perez's Demurrer and
Motion to Strike Portions of the Complaint

Facts:

This is an action for disability discrimination, wrongful termination, and wage-and-hour violations. The Complaint alleges as follows. Plaintiff Leslie Rubire Ibarra Lopez ("Plaintiff") worked for Defendant G I Security, Inc. which was owned and managed by Defendants Daniel Perez Jr. and Marcella Nada Perez. (Complaint ¶¶ 5–8, 19.) Plaintiff was terminated from her employment with Defendants after seeking medical time off prescribed by her doctor relating to her pregnancy. (Complaint ¶¶ 26–30.) Defendants also failed to pay required overtime and provide meal and rest breaks. (Complaint ¶¶ 20–25.)

Procedural

History: Plaintiff filed the Complaint on
October 2, 2025, alleging 13 causes of action:

1.

Pregnancy Discrimination

2.

Disability Discrimination

3.

Failure to Accommodate

4.

Interactive Process Violation

5.

Failure to Provide Pregnancy Leave

6.

FEHA Retaliation

7.

Failure to Prevent FEHA Violations

8.

Wrongful Termination

9.

Lab. Code §§ 510, 1194

10.

Lab. Code §§ 226.7, 512

11.

Lab. Code §§ 226

12.

Lab. Code §§ 201–203

13.

Bus. & Prof. Code § 17200

Defendants Daniel Perez and Marcella Nada Perez filed the present demurrer and motion to strike on January 5, 2026.

Plaintiff filed oppositions on August 18, 2026.

Defendant filed replies on September 15, 2026.

Analysis:

I.

DEMURRER

A

demurrer should be sustained only where the defects appear on the face of the pleading or are judicially noticed. (Code Civ. Pro., §§ 430.30, et seq.) In particular, as is relevant here, a court should sustain a demurrer if a complaint does not allege facts that are legally sufficient to constitute a cause of action. (See id. § 430.10, subd. (e).) As the Supreme Court held in *Blank v. Kirwan* (1985) 39 Cal.3d 311: “We treat the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law. . . . Further, we give the complaint a reasonable interpretation, reading it as a whole and its parts in their context.” (Id. at p. 318; see also *Hahn v. Mirda* (2007) 147 Cal.App.4th 740, 747 [“A demurrer tests the pleadings alone and not the evidence or other extrinsic matters. Therefore, it lies only where the defects appear on the face of the pleading or are judicially noticed. [Citation.]”])

“In

determining whether the complaint is sufficient as against the demurrer ... if on consideration of all the facts stated it appears the plaintiff is entitled to any relief at the hands of the court against the defendants the complaint will be held good although the facts may not be clearly stated.” (*Gressley v. Williams* (1961) 193 Cal.App.2d 636, 639.)

“A demurrer

for uncertainty is strictly construed, even where a complaint is in some respects uncertain, because ambiguities can be clarified under modern discovery procedures.” (*Khoury v. Maly's of Cal., Inc.* (1993) 14 Cal.App.4th 612,

616.) Such

demurrers “are disfavored, and are granted only if the pleading is so incomprehensible that a defendant cannot reasonably respond.” (Mahan v. Charles W. Chan Insurance Agency, Inc. (2017) 14 Cal.App.5th 841, 848.)

A

demurrer should not be sustained without leave to amend if the complaint, liberally construed, can state a cause of action under any theory or if there is a reasonable possibility the defect can be cured by amendment. (Schifando v. City of Los Angeles, supra, 31 Cal.4th at p. 1081.) The demurrer also may be sustained without leave to amend where the nature of the defects and previous unsuccessful attempts to plead render it probable plaintiff cannot state a cause of action. (Krawitz v. Rusch (1989) 209 Cal.App.3d 957, 967.)

Defendants

Daniel Perez Jr. and Marcella Nada Perez

(“Individual Defendants”) demurrer to the causes of action asserted by Plaintiff Leslie Rubire Ibarra Lopez (“Plaintiff”) on the grounds that no basis is alleged to impose individual liability upon them through the alter ego, agency, and joint employer theories. (Demurrer at pp. 6–12.)

Defendants

scarcely address the principal means by which they are included in this lawsuit: Labor Code § 558.1. That statute provides:

(a)

Any employer or other person acting on behalf of an employer, who violates, or causes to be violated, any provision regulating minimum wages or hours and days of work in any order of the Industrial Welfare Commission, or violates, or causes to be violated, Sections 203, 226, 226.7, 1193.6, 1194, or 2802, may be held liable as the employer for such violation.

(b)

For purposes of this section, the term “other person acting on behalf of an employer” is limited to a natural person who is an owner, director, officer, or managing agent of the employer, and the term “managing agent” has the same meaning as in subdivision (b) of Section 3294 of the Civil Code.

(Lab.

Code § 558.1, subd. (a), (b).)

The

moving parties are included as defendants only

as to the ninth through thirteenth causes of action under the Labor Code

and a derivative Unfair Competition claim, and in each case are alleged to be

liable through Labor Code § 558.1. (Complaint ¶¶ 104, 116, 128, 135, 142.)

Individual Defendants are alleged to be owners or managing agents of Defendant

G I Security, Inc., Plaintiff's employer, and to have caused the relevant

violations at issue, such that liability for the violations alleged may be

imputed to them. (Complaint ¶¶ 7–8, 17–18.) Plaintiff thus alleges adequate

basis for liability against Individual Defendants.

The

demurrer is accordingly OVERRULED.

II.

MOTION TO STRIKE

Any

party, within the time allowed to respond to a pleading, may serve and file a

notice of motion to strike the whole or any part thereof. (Code Civ. Proc., §

435(b)(1)). The notice of motion to strike a portion of a pleading shall quote

in full the portions sought to be stricken except where the motion is to strike

an entire paragraph, cause of action, count or defense. (California Rules of

Court Rule 3.1322.)

The

grounds for a motion to strike shall appear on the face of the challenged

pleading or form any matter of which the court is required to take judicial

notice. (Code Civ. Proc., § 437(a)). The court then may strike out any

irrelevant, false, or improper matter inserted in any pleading and strike out

all or any part of any pleading not drawn or filed in conformity with the laws

of this state, a court rule, or an order of the court. (Code Civ. Proc., §

436.) When the defect which justifies striking a complaint is capable of cure,

the court should allow leave to amend. (Perlman

v. Municipal Court (1979) 99 Cal.App.3d 568, 575.)

Individual

Defendants move to strike the prayer for punitive damages against them on the

grounds that insufficient facts are alleged to support the existence of malice or oppression. (Motion at pp. 6-8.)

Punitive

damages are allowed in non-contract cases when a defendant is guilty of “oppression, fraud, or malice” (Civ. Code § 3294, subd. (a).) The terms are defined as:

“Malice” means conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others.

“Oppression” means despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person's rights.

“Fraud” means an intentional misrepresentation, deceit, or concealment of a material fact known to the defendant with the intention on the part of the defendant of thereby depriving a person of property or legal rights or otherwise causing injury.

(Civ. Code § 3294, subd. (c).)

Something more than the mere commission of a tort is always required for punitive damages. (Taylor v. Superior Court (1979) 24 Cal.3d 890, 894.) Proof of negligence, gross negligence, or recklessness is insufficient to warrant an award of punitive damages. (Dawes v. Sup.Ct. (Mardian) (1980) 111 Cal.App.3d 82, 88–89.) Punitive damages may be recovered in an action for negligence or other nonintentional torts if the plaintiff pleads and proves that the defendant acted with the state of mind described as “conscious disregard” of the potential dangers to others. (Pfeifer v. John Crane, Inc. (2013) 220 Cal.App.4th 1270, 1299.) When malice is based on a defendant's conscious disregard of Plaintiff's rights, the conduct must be both despicable and willful. (College Hospital v. Superior Court (1994) 8 Cal.4th 794, 713 (“College Hospital”).)

The motion is unpersuasive. First, although the motion is brought solely by Individual Defendants, no prayer for punitive

damages is made in any claim alleged against them, but rather only in the first through eighth causes of action against G I Security. Second, the prayer for punitive damages that is alleged is sufficiently stated, as it arises from an alleged intentional and retaliatory discharge of Plaintiff's employment based on her disability, pregnancy, and request for medical leave. "When the plaintiff alleges an intentional wrong, a prayer for exemplary damage may be supported by pleading that the wrong was committed willfully or with a design to injure." (G. D. Searle & Co. v. Superior Court (1975) 49 Cal.App.3d 22, 29.) Plaintiff makes such allegations here. (Complaint ¶¶ 33–34.)

The motion to strike is therefore DENIED.

Superior Court of
California

County of Los Angeles

Department 732

LESLIE RUBIRE IBARRA LOPEZ

Plaintiff,

v.

G I
SECURITY, INC.,
et al.,

Defendants.

Case No.: 25STCV28842

Hearing Date: September 22, 2026

[TENTATIVE] RULING RE:

Defendants Daniel Perez Jr. and Marcella Nada
Perez's Demurrer and Motion to Strike Portions of the Complaint.

Defendants Daniel Perez Jr. and Marcella Nada Perez's Demurrer and
Motion to Strike Portions of the Complaint
is OVERRULED and DENIED.

Plaintiff to provide notice.

Dated: September 22, 2026

Hon.

Richard S. Kemalyan

Judge

of the Superior Court